

22SMCV01737 22SMCV01737

County: los-angeles

Division: Civil Law and Motion

Department: 413

Hearing date: 2026-09-16

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Case Number: 22SMCV01737 Hearing Date: September 16, 2026 Dept: 413

TENTATIVE RULING

HEARING DATE: September 16, 2026

CASE NUMBER: 22SMCV01737 consolidated with

Case No.: 21STCV18885

CASE NAME: Joseph Daneshrad, et al v. Daniel Davidovitz, et al

MOVING PARTY: Defendant Daniel Davidovitz

OPPOSING PARTY: Plaintiff Joseph Daneshrad

PROCEEDING: Motion to strike or, in the alternative, tax costs

RULING SUMMARY: The Motion to strike is denied. The alternative motion to tax is granted in part as follows: the Court taxes \$2,107.23, and allows the remaining amount of costs in the Memorandum of Costs.

Background

I. Legal Standard

Code of

Civil Procedure section 1033.5 sets forth the costs recoverable by the prevailing party. To recover a cost, it must be reasonably

necessary to the litigation and reasonable in amount. (Perko's

Enterprises, Inc. v. RRNS Enterprises (1992) 4 Cal.App.4th 238, 244.) "If the items appearing in a cost bill

appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. (Ladas v. California State Automotive Assoc. (1993) 19 Cal.App.4th 761, 773-74.) “On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs.” (Ibid.)

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The losing party may dispute any or all of the items in the prevailing party's memorandum of costs by a motion to strike or tax costs. (CRC, rule 3.1700(b).) A motion to strike challenges the entire costs memorandum, whereas a motion to tax challenges particular items or amounts.

II. Discussion

Judgment

in the amount of \$10,000.00, was issued on May 13, 2026, in favor of Plaintiffs. On the Davidovitz parties' claims against Daneshrad, the Court found for Daneshrad. Plaintiffs now seek \$4,103.34 in costs. Defendants move to strike or reduce the entire memorandum of costs as follows:

A.

Strike Costs

Defendants

argue that the motion to strike costs should be granted under Code Civ. Proc., §1033(a) because Plaintiffs recovered only \$10,000, which falls within the limited civil jurisdiction. Plaintiffs elected to litigate this matter as an unlimited civil case but recovered an amount that could have been awarded in a limited civil action.

Code of

Civil Procedure section 1033(a) applies only when “the prevailing party recovers a judgment that could have been rendered in a limited civil case.” Here, the judgment resolved two actions tried together, including Defendants' own claim for \$350,000, an amount far exceeding the \$35,000 limited-civil ceiling. Therefore, the motion to strike costs is denied.

B.

Tax Costs

1.

Item 1(c) – Appellate filing ad record costs

Plaintiffs concede this item because the appellate disposition awarded costs on appeal to Defendants (Opposition, p.17.) The Court taxes \$877.25

2.

Item 14 – Electronic- Filing Fees.

Filing fees are recoverable under Code of Civil Procedure section 1033.5 subdivision (a)(1).

Plaintiffs concede a reduction of \$49.53, which includes \$25.02 in appeal related charges and \$24.51 they cannot reconcile to the receipts, leaving \$255.75. The Court taxes \$49.53.

3.

Items 1(e) and 1(f) – Summary Judgment Filing Fees

As discussed above, filing fees are recoverable. Defendants claim the filing fees for the two motions for summary judgment filed in this matter exceed ordinary costs.

The Court does not find that the motions were necessary and therefore taxes the costs for the motions for summary judgment (Items 1(e) and 1(f)) in the amount of \$1,030.45. On February 11, 2025, the Court found the second motion for summary judgment to be procedurally improper. On June 6, 2024, the Court found that Daneshrad had failed to address all of the Davidovitz parties' claims and therefore, could not show Daneshrad was entitled to a ruling in his favor on the first motion for summary judgment.

4.

Item 2 – Jury Fees

Jury Fees are recoverable costs

under code of civil procedure section 1032(a)(1). Defendants argue that Plaintiffs are only entitled to \$150 out of the \$300 sought. Section 631, subdivision (b) requires “[a]t least one party demanding a jury on each side of a civil case to pay a non-refundable fee of one hundred fifty dollars (\$150). Because Daneshrad could have filed his claim as a cross-complaint against the Davidovitz parties, rather than as a separate action, and the case cases were ultimately consolidated, the Court taxes one of the jury fees deposited, in the amount of \$150.

5.

Item 13 – Models/enlargements/photocopies
of exhibits

Defendants take issue with Item 13
stating Plaintiff provides no itemization, invoices, or proof of payment.

Plaintiff states that to comply
with Department 37’s trial preparation order he had to prepare five identical sets of consolidated exhibit records containing 506 pages. However, Plaintiff declares in his declaration that the binders were prepared in his office and cost \$0.20 per page.

Code Civ. Proc. Section 1033.5
states that “[m]odels, the enlargements of exhibits and photocopies of exhibits, and the electronic presentation of exhibits, including costs of rental equipment and electronic formatting, may be allowed if they were reasonably helpful to aid the trier of fact” are allowable costs under Section 1032.

The Court finds that exhibit
binders were necessary for the non-jury trial conducted and the fees sought are reasonable. As a result, Item 13 is fully recoverable in the amount of \$540.52.

6.

Unchallenged Items – Item 1(a), 1(b),
1(d), and 5

Defendants’ motion does not object

to any of these costs. Each are costs allowed under Code Civ. Proc Section 1033.5 and are supported by receipts.

Conclusion

The Motion

to strike is denied. The alternative motion to tax is granted in part: the court taxes \$877.25 (item c) and \$49.53(item 14) as conceded by plaintiffs. Costs are awarded to the Plaintiff in the amount of \$3,176.56

Date: September

16, 2026 _____

William

E. Weinberger

Judge,

Los Angeles Superior Court